



Lawsuits Against the Federal Government: Basic Federal Court Procedure and Timelines

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Many federal laws and actions of federal officers or agents are challenged in court. Lawsuits against the federal government or executive branch agencies or officials usually proceed in federal court because federal courts [possess](#) exclusive [jurisdiction](#) over some such matters, and other matters may be [removed](#) to federal court if filed in state court. By understanding the procedures that govern federal court litigation, legislators can consider potential case outcomes, estimate timelines, and appreciate the importance of court rulings at different stages of litigation. This In Focus reviews common procedures that govern civil suits against the federal government, tracing the path from initial filing to possible Supreme Court review. [CRS In Focus 12626](#) discusses Congress's authority to expedite cases or set deadlines for litigation.

The District Court: From Filing to Appeal

The first step in most federal civil cases is filing a *complaint*—the document that lays out the plaintiff's case. The complaint must contain [three main elements](#). It must (1) show that the court has jurisdiction, (2) set forth plausible allegations that the defendant has violated the law, and (3) request relief that would remedy the alleged harm to the plaintiff. Depending on the claims at issue, plaintiffs may request various forms of relief, including but not limited to [money damages](#), an [injunction](#) (an order commanding the enjoined party either to do or refrain from doing some act), or [attorney's fees](#) and litigation costs.

Ordinarily, cases are filed in the lowest tier of the federal court system, known as the [district court](#). Each of the 50 states (plus the District of Columbia and Puerto Rico) has between one and four federal district courts. Each district court has several judges, one of whom is generally randomly assigned to each case (limited classes of cases are heard by a [three-judge district court](#)). [Federal statutes](#) dictate which district courts can hear which cases. When the events giving rise to a case are localized, the plaintiff may need to file in the local district. However, because federal policies often affect broad geographic areas, a plaintiff suing the federal government may be able to choose from among multiple districts. As a result, plaintiffs may file in the district they believe will be most favorable for their claims, a practice sometimes called *forum shopping*.

Federal litigation is governed by [procedural rules](#) made by the Supreme Court and subject to review and modification by Congress. Once the plaintiff files the complaint and serves the lawsuit on the defendant, the usual next step is a [response](#) from the defendant. Most often, the defendant files an *answer* to the complaint, responding to the plaintiff's claims and presenting defenses, or a *motion to dismiss*, asking the court to dispose of the case without trial because the complaint cannot succeed as a matter of law. The court may deny a motion to dismiss or may grant the motion as to the case as a whole or certain claims.

If the court does not grant a motion to dismiss in full, the case may proceed to [discovery](#), the process by which parties exchange evidence. In some cases challenging a federal agency action, review is based on the agency's administrative record for that action, and discovery is not conducted. Once the factual record is sufficiently developed, either party (or both) may file a motion for [summary judgment](#), arguing that the other party cannot prevail in light of the applicable law and the undisputed facts. The district court judge may resolve legal questions at this stage but may not resolve factual disputes. The court may grant summary judgment in full or in part and may grant summary judgment for the plaintiff on some claims and for the defendant on others. Claims not resolved through dismissal or summary judgment proceed to trial for resolution of any material factual questions. While [jury trials](#) are available in some federal civil cases, most cases against the federal government are tried in a [bench trial](#) without a jury, with the judge making the necessary factual findings.

Full litigation of a case can take months or years. The Administrative Office of the U.S. Courts (AO) [reports](#) that in the year ending in June 2026, civil cases in the district courts had a median length of 33.7 months from filing to trial, and more than 26% of civil cases had been pending for more than three years. As an alternative to the cost and delay of litigation, parties may settle the case at any time. Many cases end in settlement.

If a case does not settle and is disposed of via dismissal, summary judgment, or a final decision on the merits, a losing party can [appeal](#). Any party that loses on a claim in district court may appeal, sometimes leading to cross-appeals where both parties appeal different aspects of the same decision. Generally, appeal must be taken from a [final decision](#) that resolves the case in full, but parties can also appeal limited categories of non-final [interlocutory orders](#), including grants or denials of injunctions and [denials of sovereign immunity](#). Where a non-final decision involves legal issues of particular importance, the government may seek an [early appeal](#) to avoid discovery and a lengthy trial.

Most district court decisions can be appealed to the courts of appeals. Some decisions, including decisions of three-judge district courts, can be [appealed](#) directly to the Supreme Court.

The Federal Court of Appeals

The [U.S. Courts of Appeals](#) comprise the second tier of the federal court system. The states, the District of Columbia, and some territories are [divided geographically](#) into 12 regions known as *circuits*, each of which has a federal appeals court that hears appeals from district courts within the circuit. In addition, the [U.S. Court of Appeals for the Federal Circuit](#) handles cases involving specific subject matters such as patent disputes and

some monetary claims against the U.S. government. Circuit courts [vary in size](#) from six to 29 active judgeships and may also include judges who have taken [senior status](#). Typically, a panel of three judges is selected for each appeal.

The federal appeals courts handle most [appeals from district courts](#). In addition, federal statutes provide that certain cases, including some petitions for judicial review of actions by federal agencies, [begin in the courts of appeals](#) rather than district court.

Like in district court, parties before a Court of Appeals may file [motions](#) to dismiss or for summary disposition asking the court to rule without full briefing and oral argument. If no such motions resolve the case in full, the parties file briefs outlining why the district court's decision should be affirmed or reversed. Generally, the parties may not present new evidence or arguments on appeal—the three-judge panel accepts the trial court's factual findings unless they are clearly erroneous and considers whether the trial court correctly applied the law to the facts. Many appeals receive [oral argument](#).

There is no set timeline for a case to proceed from appeal to decision. In cases where the United States is a party, appeals must be filed [within 60 days](#) of the challenged district court order. Each of the circuits has different local rules and caseloads affecting the amount of time before argument. [Statutes](#) and [local rules](#) may accelerate the timeline in some circumstances. [According to the AO](#), between June 2025 and June 2026, the median time from notice of appeal to decision by an appeals court in all cases was just longer than ten months.

Once a three-judge panel issues a ruling, any losing party may file a [petition for rehearing](#) by the same panel or rehearing en banc. Rehearing en banc usually entails review of the panel's decision by all active judges in a circuit (larger circuits may use a partial-court en banc review process). A party seeking rehearing or rehearing en banc must file a petition, usually arguing that the panel's opinion is inconsistent with circuit or Supreme Court precedent. A majority vote of active judges in the circuit is needed to grant a petition for rehearing en banc. Petitions for rehearing or rehearing en banc are [rarely granted](#). In civil cases involving the United States, parties generally have [45 days to petition for rehearing](#). The court's decision usually does not [go into effect](#) until seven days after that period expires, or until the court denies any rehearing petitions. Because most Supreme Court review is discretionary, an appeals court ruling is the final level of judicial review in many federal cases.

The Supreme Court

An appellate court decision becomes final for purposes of appeal either after a panel decision of which no party seeks rehearing or after the appeals court resolves any petition for rehearing. At that time, a losing party may ask the Supreme Court to review the lower court decision through a [writ of certiorari](#) (cert), which the Court has full discretion to grant or deny. Limited classes of cases may be appealed to the Supreme Court [as of right](#) or [filed directly](#) in the Supreme Court. As an alternative to the usual appeals process, a party can seek to skip proceedings in an appeals court and petition the Supreme Court directly for [certiorari before judgment](#). Such petitions are [rarely granted](#), but grants have increased somewhat since 2019.

Parties have [90 days](#) from the lower court's final decision to file a cert petition. Four of the nine Supreme Court Justices must vote to grant cert for the Court to take up a case. The Supreme Court's rules state that the Court will grant cert only for "[compelling reasons](#)," and explain that a grant is more likely when the petition raises issues such as diverging legal interpretations between circuit courts, a departure from previous Supreme Court caselaw, or an undecided question of federal law. The Court receives approximately 7,000-8,000 petitions annually and grants 50-80. The Supreme Court is more likely to consider cases in which the federal government participates—the United States is involved in approximately [two-thirds](#) of the Court's merits cases each year.

If the Supreme Court grants cert, the parties [brief](#) the case. At that point, interested outside parties may file [briefs of amici curiae](#) ("friends of the court") expressing their views on the matter. Amici can also participate in the lower courts, but the high-profile nature of Supreme Court review often draws additional participants. Finally, the Supreme Court usually conducts [oral argument](#) before issuing its decision.

Time frames at the Supreme Court can vary. One observer [reports](#) that grants of cert during the October 2023 term took between 80 and 300 days. Ordinarily, the Court grants petitions on a regular basis while it is in session (October-June). The Court typically schedules oral argument several months after a petition is granted and carries grants after January over for argument the following term. Writing an opinion also takes time. One commentator [reported](#) that for the October 2019 Term, the Court took an average of 112 days after oral argument to issue a decision. However, the Court can alter these time frames. Emergency litigation, discussed below, is one example of this. As another example, the 2000 election case [Bush v. Gore](#) was briefed, argued, and decided within a few days.

Emergency Litigation

The foregoing procedures and timelines apply to ordinary [merits litigation](#) before the federal courts. Lawsuits against the federal government can include time-sensitive requests for injunctive relief, sometimes called *emergency litigation*. In many lawsuits challenging government action, the plaintiff files a motion for a [preliminary injunction](#) (PI), a court order designed to preserve the status quo while a case is pending. A motion for PI can be filed before the defendant files any pleadings. (A plaintiff may also move for short-term relief via a [temporary restraining order](#) before the defendant receives notice of a suit.) Court orders in emergency litigation are intended to apply temporarily while courts fully consider the matter, but they may have significant practical impact and can sometimes effectively resolve a case. Briefing and oral argument in emergency matters may be highly expedited, and the grant or denial of a PI is [immediately appealable](#). Thus, these cases may move from filing in district court to Supreme Court decision in a matter of [months](#) or [days](#). [CRS Legal Sidebar 11391](#) provides additional analysis of emergency litigation before the Supreme Court.

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